

of one year's feu-duty only, unless such payment is expressed to be over and above such feu-duty or is otherwise unequivocally declared not to include the feu-duty of the year.

5. Where under any feu provision is made as aforesaid for payment of a duplicand or double of the feu-duty, and where the superior, whether prior to or after the commencement of this Act, shall have, in claiming or in settlement of payment of any such duplicand or double, claimed or accepted payment of one year's feu-duty only over and above the feu-duty for the year, the amount of the casualty payable to the superior shall, for the purposes of the Feudal Casualties (Scotland) Act, 1914, and for all other purposes, be deemed to be the amount of one year's feu-duty only, and that whether such duplicand or double is or is not expressed to be over and above the feu-duty or otherwise unequivocally declared not to include the feu-duty for the year.

Special
case.

CHAPTER 35.

An Act to make further provision with respect to the time for the counting of Votes at Parliamentary Elections, and to amend the Law with respect to the right of voting by proxy; and for purposes connected therewith. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Subsection (3) of section twenty-three of the Representation of the People Act, 1918 (hereinafter referred to as the principal Act), and section one of the Representation of the People (Amendment) Act, 1918 (which enable provision to be made temporarily for counting the votes at certain elections at a time after the close of the poll to be fixed by Order in Council), shall cease to have effect.

Time for
counting
votes at par-
liamentary
elections.
8 Geo. 5.
c. 64.
8 & 9 Geo. 5.
c. 50.

2.—(1) Section twenty-three of the principal Act shall have effect as though the following subsection were substituted for subsection (4) thereof :—

Extension
of right to
vote by
proxy.

“(4) Any person whose name is entered on the absent voters list, and who makes a statement in the prescribed form that there is a probability that he will at the time of a parliamentary election be at sea or out of the United Kingdom, and satisfies the registration officer as to the bonâ fides of such statement, shall be entitled if he so desires to

appoint a proxy, and having appointed a proxy to vote by proxy in accordance with and subject to the provisions of this Act.

"No ballot paper shall be sent for the purpose of voting by post to a person who has appointed a proxy under this provision while the appointment is in force, or to any person unless the address of that person recorded by the registration officer is an address in the United Kingdom.

"The provisions set out in the Third Schedule to this Act shall have effect with respect to voting by proxy."

(2) The Third Schedule to the principal Act shall have effect as though the following paragraph were substituted for paragraph 4 :—

"4. A proxy paper, unless cancelled, shall remain in force so long as the elector continues to be registered in respect of the same qualification, and to be on the absent voters list."

(3) Any proxy paper in force at the date of the commencement of this Act shall continue in force as though it had been issued under the principal Act as amended by this Act.

3. In the case of a parliamentary by-election—

(a) the day fixed for nomination in boroughs shall not be later than the seventh day after the returning officer receives the writ, with an interval of not less than two clear days between the day on which the returning officer gives the notice and the day of nomination; and

(b) the poll shall take place on such day as the returning officer may appoint, not being less than six or more than eight clear days after the date fixed for nomination;

Day of poll
at by-elections.

35 & 36 Vict.
c. 33.

and the First Schedule to the Ballot Act, 1872, and subsection (1) of section twenty-one of the principal Act shall be modified accordingly.

Short title
and commencement.

4.—(1) This Act may be cited as the Representation of the People (No. 2) Act, 1920, and shall be included among the Acts which may be cited as the Representation of the People Acts, 1918 to 1920.

(2) This Act shall come into operation at the expiration of two months from the passing thereof, but where at the date on which this Act comes into operation a writ has been issued in respect of any election, this Act shall not apply to that election.